

Data Privacy and Security Agreement (DPSA)

This Data Privacy and Security Agreement ("Agreement") is entered into by and between **LevelUp Enterprises LLC** ("Provider") and the school, district, or educational organization listed in the signature block ("Subscriber"). This document establishes the protocols for the protection of Student Data and Personally Identifiable Information (PII) in accordance with 2026 industry standards and legal requirements.

1. Scope of Service

Provider provides a behavioral incentive and student rewards platform ("LevelUp Rewards"). To provide this service, certain data elements must be processed to track student progress, manage point ledgers, and facilitate check-ins.

2. Data Collection and Usage Rubric

The following table outlines the data elements collected and the specific purpose for each as required by FERPA and COPPA guidelines.

Data Category	Specific Elements	Purpose
Student Identity	First Name, Last Initial, Grade Level	To identify participants in the rewards ledger.
Behavioral Records	Points Earned, Reward Redemptions	Core functional data for the incentive system.
Technical Logs	IP Address, Browser Type, Login Timestamps	Security monitoring and platform optimization.

3. 2026 Artificial Intelligence (AI) Compliance

LevelUp Enterprises LLC adheres to the **1EdTech Generative AI Data Rubric**. We provide the following explicit guarantees:

- **No Model Training:** Student PII, behavioral logs, and teacher comments are **NEVER** used to train, fine-tune, or iterate upon any Large Language Models (LLMs) or generative AI systems.
- **Data Isolation:** All student data is stored in isolated environments. AI features (such as automated reward descriptions) are processed via "Zero-Retention" APIs where data is deleted immediately after the specific task is completed.

4. New York Education Law 2-d Supplemental Information

As a Brooklyn-based entity, Provider complies with New York State Education Law 2-d and the Parents' Bill of Rights.

Security Requirement	Provider Implementation
Storage Location	Google Cloud / Firebase (US-East Multi-Region).
Encryption Standards	AES-256 at rest; TLS 1.3 in transit.
Data Deletion Policy	Data is purged within 90 days of contract termination or upon written request.
Authorized Sub-processors	Google Cloud Platform, Cloudflare Inc.

5. Breach Notification

In the event of an unauthorized release of Student Data, Provider will notify the Subscriber within seven (7) days of discovery and will cooperate fully with the Subscriber's data protection officer to mitigate any impact.

6. Execution

By signing below, the parties agree to be bound by the terms of this Agreement.

Provider: LevelUp Enterprises LLC

Signature: _____ Date: May 6, 2026

Name: Dovid Teitelbaum Title: Managing Member

Subscriber: [School/District Name]

Signature: _____ Date: _____

Name: _____ Title: _____